

STATE OF MINNESOTA

DISTRICT COURT

COUNTY OF HENNEPIN

FOURTH JUDICIAL DISTRICT

Case Type: Contract

Yibiao Lu and Jie Hu,

Court File No.: 27-CV-26-11606

Plaintiffs,

Judge: Jamie Anderson

vs.

Fire Insurance Exchange, by and through its
attorney-in-fact, Fire Underwriters Association
(d/b/a Farmers Insurance),

**DEFENDANT'S NOTICE OF
MOTION AND MOTION FOR
JUDGMENT ON THE PLEADINGS
PER MINN. R. CIV. P. 12.03**

Defendant.

PLEASE TAKE NOTICE that Defendant Fire Insurance Exchange will bring a motion for judgment on the pleadings before the Honorable Jamie Anderson, Judge of District Court, on November 23, 2026, at 4:00 p.m. at the Hennepin County Government Center located at 300 South 6th Street, Minneapolis, MN 55487. The courtroom number will be provided the week before the hearing.

MOTION FOR JUDGMENT ON THE PLEADINGS

Pursuant to Minn. R. Civ. P. 12.03, Defendant moves the Court for:

1. An Order for judgment on the pleadings pursuant to Minn. R. Civ. P. 12.03, as detailed in its Memorandum of Law, which will be submitted in accordance with the Rules of Civil Procedure;
2. To stay further discovery pending the Court's determination of the Rule 12.03 motion; and
3. For such additional relief as the Court shall deem just and proper.

KENNEDY LAW FIRM P.C.

Dated: October 1, 2026

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